

1 Stephen Russell
5334 Valley Vista Drive
2 Reno, NV, 89431
(415) 730-1011
3 Email: sg.russ@aol.com

4 STEPHEN RUSSELL, IN PRO PER

5
6
7 **SUPERIOR COURT OF THE STATE OF CALIFORNIA**
8 **FOR THE COUNTY OF SAN FRANCISCO**
9

10 STEPHEN RUSSELL

11 Plaintiff(s),

12 vs.

13 STEPHEN WALSH, an individual; MAURA

14 WALSH, an individual; TARA WALSH, an

15 Individual

16
17 Defendant(s).
18
19

Case No.: CGC-20-588105

MOTION FOR SUMARY JUDGMENT

DEPT: 610

Judge: Anne-Christine Massullo

Dept: 610

Action Filed: October 31, 2023

Trial Date: Unassigned

20 **MOTION FOR DEFAULT JUDGEMENT**
21

22 I, Plaintiff, Stephen Russell, hereby move this Court for a default judgment against Defendants,
23 Tara Walsh and Maura Walsh, on the following grounds:
24

25 **Failure to Respond:** Despite being properly and evidently served with the complaint in 2020, the
26 defendants have failed to respond within the time frame specified by law.
27
28

1 **Proper Service:** The defendants were properly served with the summons and complaint, ensuring
2 they were given adequate notice of the lawsuit. Evidence of service, including photos of the
3 defendants being served, is shown in the previously filed *Response to Order to Show Cause*.

4
5 **Sufficient Pleadings:** The complaint sufficiently states a claim upon which relief can be granted,
6 detailing the kidnapping and subsequent actions taken by the defendants.

7
8 **Proof of Claim:** The facts of this case were deeply explored in sworn depositions and a week-
9 long trial relating to the battery, abuse, and drugging of Mr. Russell.

10
11 **No Excusable Neglect:** The defendants have shown a significant pattern of claimed evasion of
12 service, with no valid reason for their failure to respond. In one of the defendant's depositions,
13 Maura Walsh's attorney Frank Moore claims that the two cases (CGC-18-570137 and this case
14 CGC-20-588105) "should be merged," showing knowledge of this case. In that same deposition,
15 Maura Walsh claims to be "harassed" in regards to service from this court, as well as not
16 "know[ing] what to do with all these documents."

17
18 **No Pending Motion to Set Aside Default:** To the best of the plaintiff's knowledge, no motion to
19 set aside the default has been filed by the defendants.

20
21 **Calculation of Damages:** The plaintiff will provide a clear calculation or basis for the damages
22 sought at a subsequent hearing, if necessary.

23
24
25 **Compliance with Local Rules:** All local rules regarding default judgments have been complied
26 with.

1 **No Meritorious Defense:** The defendants have not presented any defense, let alone one that
2 might have merit.

3
4 **Public Policy:** Granting a default judgment promotes judicial efficiency, especially given the
5 defendants' refusal to participate in the legal process.

6
7 The defendants' actions, including the kidnapping of Evelyn Grace across state lines under a court
8 order, the false claims regarding Mr. Russell's mental health, and the subsequent evasion of service,
9 demonstrate a clear and intentional disregard for the legal process. The defendants have knowingly
10 lied and conspired against Mr. Russell, causing significant harm and distress, and disregarding the
11 wellbeing of his child Evelyn Grace by kidnapping her from her father after he was awarded full
12 custody.

13
14 Given the above reasons and the evidence presented, Plaintiff respectfully requests that this Court
15 grant a default judgment in favor of Plaintiff and against Defendants, Tara Walsh and Maura Walsh,
16 and for such other and further relief as the Court deems just and proper.

17
18
19
20 DATED: Jan 10, 2023.

21
22 
23 STEPHEN RUSSELL
24 In Pro Per
25
26
27
28

1 Stephen Russell
2 5334 Valley Vista Dr
3 Sparks, NV 89431
4 (415) 999-3944
5 Sg.russ@aol.com
6 Pro se

ELECTRONICALLY
FILED
Superior Court of California,
County of San Francisco

10/26/2023
Clerk of the Court
BY: SHIRLEY LE
Deputy Clerk

7 SUPERIOR COURT OF THE STATE OF CALIFORNIA¹
8 COUNTY OF SAN FRANCISCO
9 UNLIMITED JURISDICTION

10 STEPHEN RUSSELL, an individual

CASE NO.CGC-20-588105

11 Plaintiff,

**DECLARATION OF STEPHEN RUSSELL IN
RESPONSE TO ORDER TO SHOW CAUSE**

12 V.

13 STEPHEN WALSH, an individual; MAURA
14 WALSH, an individual; TARA WALSH, an
15 Individual

Department: 610
Hearing Date: Oct 31, 2023
Time: 10:30 am

16 Defendants.

Action Filed: Feb 6, 2023
Trial Date: none set

17
18 **DECLARATION OF STEPHEN RUSSELL**

19
20 *When Tara K. Walsh was caught drugging and abusing Stephen G. Russell in 2018, she*
21 *fled to the airport, abandoning her infant daughter. The Walsh family then conspired to kidnap*
22 *Evelyn Grace and bring her to their gated family compound in Chappaqua, New York where she*
23 *has remained. In February of 2022, a San Francisco jury found Ms. Walsh liable for drugging,*
24 *domestic abuse and intentional infliction of harm. They rejected the rationale that there was any*
25 *reasonable explanation for Walsh's actions, calling them "outrageous" and done with "malice."*
26 *In September 2023, the First District Appellate Court affirmed that ruling. The Walsh family's*
27 *civil kidnapping of Evelyn Grace is the subject matter of this case.*
28
29
30

1
2 I, Stephen Russell, declare the following facts are within my personal knowledge and,
3 if called as a witness herein, I can and will competently testify thereto. I am plaintiff in the
4 above captioned matter. I am presently unrepresented by counsel in this matter as my former
5 counsel withdrew from representing me in this action on or about June 29, 2022. I will be
6 appearing in person at the hearing on Oct 31, 2023 at 10:30 am to demonstrate my compliance
7 since the Order to Show Cause was issued.

8 I would like to correct my contact information, since I have discovered that as recently
9 as August 2023, my previous attorney Brian Waller has been receiving mail on my behalf. I have
10 not had any communications with Brian since he withdrew as my attorney in February 2023. My
11 current mailing address is: **5334 Valley Vista Dr, Sparks, NV, 89431**. My current phone number
12 and email are: (415) 730-1011 and sg.russ@aol.com.

13 Additionally, I would like to apologize. I have been in trial and appeal of recently
14 affirmed case RUSSELL v. WALSH (Superior Court of California County of San Francisco, Case
15 no. CGC-18-570137), where charges of battery, intentional infliction of emotional distress, and
16 domestic violence were filed against Tara Walsh who was caught drugging my wine in 2018.
17 This is particularly relevant given the extreme overlap in evidence with this case. Attorney for
18 the Walsh's Frank S. More explicitly stated that he felt this case and case no.CGC-18-570137
19 should have been merged.

20 I would also like to state that I am currently unrepresented, as my previous attorneys
21 have withdrawn after receiving threats to their licenses via phone call from the defendant in this
22 case, Stephen Walsh (A recording of the phone calls will be available at the hearing).

23 Additionally, in the recently affirmed case mentioned above, there is a pattern of
24 service avoidance and abuse of service that has been documented, which resulted in unnecessary
25 legal fees. The depositions and testimony of Stephen Walsh, Maura Walsh, and Tara Walsh from
26 the above mentioned case (RUSSELL v. WALSH, Case no. CGC-18-570137) include direct
27 acknowledgement of receipt of service materials relating to this case.

28 In their depositions, the Walsh family specifically referred to receipt of service as
29 "harassment." Tara Walsh's sister Brienne Walsh testified in her deposition and in an article that

1 they had been instructed by her parent to throw all subpoenas from this court “in the trash”
2 (Transcript Brienne Walsh Deposition Sept 28, 2020).
3

4 In both cases, service has always occurred through multiple channels including but not
5 limited to: Service by Sheriff at the Walsh family home, their places of business, or clubs by a
6 licensed private investigator. Service was also provided by mail and email, per the Walsh
7 family’s written request. Service was also filed through Albany NY confidential address
8 program, which allows for automatic service of protected persons. Though the address was listed
9 as private, Walsh testimony clarified they were all “living together at 394 Whipporwill” when the
10 Chappaqua Sheriff Christopher Barnett filed an Affidavit of Service noting seeing family
11 members through a window (Exhibit A).

12 In this declaration I am providing both previously existing evidence of Stephen Walsh,
13 Maura Walsh, and Tara Walsh’s knowledge of this case’s existence as well as previously
14 unshared evidence proving that Maura Walsh has, in fact, been served and has knowledge of this
15 case. Provided below this declaration will be the full set of exhibits from the previous declaration
16 ranging from EXHIBITS A-H, and EXHIBITS I-K are the newly included evidence.

17 I would also like to request a motion for Summary Judgement or Default Judgement
18 and sanctions for the Walsh family’s repeated conduct along with emergency restraint of such
19 conduct moving forward.
20

21 I declare under penalty of perjury under the laws of the State of California that the
22 foregoing is true and correct.
23

24 Executed this 26th day of October, 2023.

25
26 

27 Stephen Russell, Oct 26 2023
28
29

EXHIBIT A

EXHIBIT A



WESTCHESTER COUNTY
DEPARTMENT OF PUBLIC SAFETY
SHERIFF'S CIVIL UNIT
THOMAS A. GLEASON
COMMISSIONER - SHERIFF



110 DR MARTIN LUTHER KING JR BLVD – ROOM L217 – WHITE PLAINS – NEW YORK – 10601

LAW OFFICES OF HOOK & HOOK
430 EAST OAKVIEW DRIVE
SUITE 101
WAYNESBURG, PA 15370

1/15/2021
ATTORNEY FILE:
SHERIFF FILE: 21000014

RE: STEPHEN G RUSSELL v. STEPHEN WALSH, MAURA WALSH, TARA WALSH

Process returned herewith (for reason checked below)

- ☒ XXXX Subject moved. Left no forwarding address
- ☐ We had insufficient time for service. Please re-date and return.
- ☐ Not known at address given
- ☐ No such number or street address
- ☐ No longer employed at given location
- ☐ Has mail and telephone privileges only at address given
- ☐ Reported out-of-town
- ☐ Vacant at address
- ☐ Please furnish us with better residence / business address
- ☐ Not deliverable – address is a P.O. Box
- ☐ Numerous attempts made at service. We were unable to make contact.
- ☐ Out of business
- ☐ Different business at location
- ☐ Returned by request
- ☐ Not listed in Building Directory – No apartment given.
- ☐ Evading Service
- ☐ Unable to gain entry at business or residence address
- ☐ Employer does not allow service or process upon employees
- ☐ No accounts in name given.
- ☐ Account balance is below minimum required for levy/Funds are exempt from levy.
- ☐ Account balance is zero or overdrawn.
- ☐ Account in multiple names - Turnover order needed.
- ☐ No reply to demand made on
- ☐ Execution expired – no leviable assets
- ☐ Judgment unsatisfied
- ☐ Case Closed
- ☐ See Remarks

Remarks: Stephen Walsh was served, however he stated the both Maura and Tara Walsh no longer lived at the given address. Walsh also stated he would not provide me with their current address.

Sincerely,
Police Officer: Christopher Barnett

SHERIFF'S CERTIFICATE OF SERVICE (C.P.L.R. 306)

SUPERIOR COURT
STATE OF NEW YORK
COUNTY OF SAN FRANCISCO

INDEX: CGC-20-588105

STEPHEN G RUSSELL

Plaintiff/Petitioner

-against-

STEPHEN WALSH, MAURA WALSH, TARA WALSH

Defendant/Respondent

I, Thomas A. Gleason, Commissioner-Sheriff of the County of Westchester, State of New York do hereby certify that on 1/14/2021 at 6:54 PM service was effected of the annexed SUMMONS AND COMPLAINT, FIRST AMENDED COMPLAINT, NOTICE OF CASE MANAGEMENT CONFERENCE in the above entitled action or proceeding by my undersigned Police Officer CHRISTOPHER BARNETT, upon STEPHEN WALSH the person named therein as defendant in said action or proceeding at 394 WHIPPOORWILL ROAD CHAPPAQUA, NY 10514 .

Defendant Description:

Approximate Age: 50/55

Sex: MALE

Approximate Weight: 175

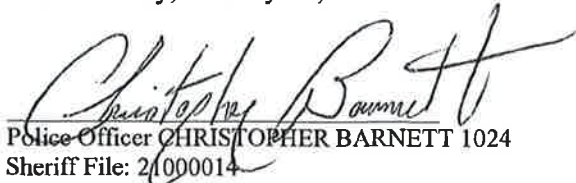
Height: 5' 10"

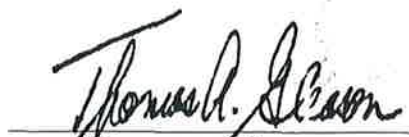
Color of Skin: WHITE

Hair: GREY

I asked STEPHEN WALSH if he is a member of the military and he responded, "No."

Date: Friday, January 15, 2021


Police Officer CHRISTOPHER BARNETT 1024
Sheriff File: 21000014


Thomas A. Gleason
Commissioner-Sheriff
Westchester County

SHERIFF'S CERTIFICATE OF ATTEMPTED SERVICE

**SUPERIOR COURT
STATE OF CALIFORNIA
COUNTY OF SAN FRANCISCO**

INDEX: CGC-20-588105

STEPHEN G RUSSELL

Plaintiff/Petitioner

-against-

STEPHEN WALSH, MAURA WALSH, TARA WALSH

Defendant/Respondent

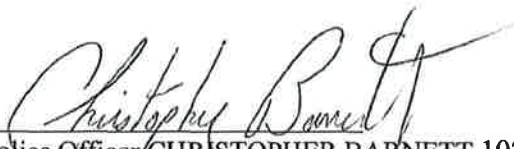
I, Thomas A. Gleason, Commissioner-Sheriff of the County of Westchester, State of New York do hereby certify that service in the above entitled action or proceeding was attempted by my undersigned Police Officer CHRISTOPHER BARNETT. The deponent personally attempted to serve, with due diligence, the annexed SUMMONS AND COMPLAINT, FIRST AMENDED COMPLAINT, NOTICE OF CASE MANAGEMENT CONFERENCE on a number of occasions but has been unsuccessful. The last attempt was made on 1/14/2021 at 6:54 PM at 394 WHIPPOORWILL ROAD CHAPPAQUA, NY 10514 . Additional attempts are documented below.

Service attempts:

Date: 1/14/2021 @ 6:54 PM - 394 WHIPPOORWILL ROAD CHAPPAQUA, NY 10514

The deponent was unable to serve MAURA WALSH for the following reasons: She no longer lives at the given address

Date: 1/15/2021


Police Officer CHRISTOPHER BARNETT 1024
Sheriff File: 21000014


Thomas A. Gleason
Commissioner-Sheriff
Westchester County

SHERIFF'S CERTIFICATE OF ATTEMPTED SERVICE

**SUPERIOR COURT
STATE OF CALIFORNIA
COUNTY OF SAN FRANCISCO**

INDEX: CGC-20-588105

STEPHEN G RUSSELL

Plaintiff/Petitioner

-against-

STEPHEN WALSH, MAURA WALSH, TARA WALSH

Defendant/Respondent

I, Thomas A. Gleason, Commissioner-Sheriff of the County of Westchester, State of New York do hereby certify that service in the above entitled action or proceeding was attempted by my undersigned Police Officer CHRISTOPHER BARNETT. The deponent personally attempted to serve, with due diligence, the annexed SUMMONS AND COMPLAINT, FIRST AMENDED COMPLAINT, NOTICE OF CASE MANAGEMENT CONFERENCE on a number of occasions but has been unsuccessful. The last attempt was made on 1/14/2021 at 6:54 PM at 394 WHIPPOORWILL ROAD CHAPPAQUA, NY 10514. Additional attempts are documented below.

Service attempts:

Date: 1/14/2021 @ 6:54 PM - 394 WHIPPOORWILL ROAD CHAPPAQUA, NY 10514

The deponent was unable to serve TARA WALSH for the following reasons: She no longer lives at the given address

Date: 1/15/2021


Police Officer CHRISTOPHER BARNETT 1024
Sheriff File: 21000014


Thomas A. Gleason
Commissioner-Sheriff
Westchester County

EXHIBIT B

EXHIBIT B

v.

Defendants.

AFFIDAVIT OF SERVICE

1

The man said that Tara is often visited for service of Subpoenas and is therefore leary of same. This gentleman, later identified as Mr. Stephen Walsh, Tara's Father, was quite pleasant and stated " I will accept it" (the subpoena). He was then served.

On this 9th day of February 2021, Alexander Saavedra
appeared before me


Notary Public


Alexander Saavedra

Daniel J Winters
NOTARY PUBLIC
State of New Jersey
My Commission Expires April 4, 2024





NOTARY PUBLIC
STATE OF NEW JERSEY
EXPIRES
COMMISSION
YY

EXHIBIT C

EXHIBIT C

1 TARA WALSH
SELF REPRESENTED PARTY
2 Tarawalsh0127@gmail.com
394 Whippoorwill RD
3 Chappaqua, NY 10514
Telephone: 646.397.3492
4

5 Defendant TARA WALSH
6

ELECTRONICALLY
FILED
*Superior Court of California,
County of San Francisco*

03/09/2022
Clerk of the Court
BY: ERNALYN BURA
Deputy Clerk

7 **SUPERIOR COURT OF THE STATE OF CALIFORNIA**
8 **COUNTY OF SAN FRANCISCO**
9

10 STEPHEN RUSSELL, an individual,

11 Plaintiff,

12 v.

13 TARA WALSH, an individual; and DOES 1-
14 20,

15 Defendants.
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Case No. CGC-18-570137

PROOF OF SERVICE

1 **PROOF OF SERVICE**

2 I, the undersigned, declare as follows:

3 I am resident of Chappaqua, State of New York. I am over the age of eighteen (18) and am
4 not a party to this action. My business address is 394 Whippoorwill RD, Chappaqua, NY 10514.

5 On the date set forth below, I served the document(s) entitled:

6 on the party in pro per in this action as follows:

7 DEFENDANT'S NOTICE OF INTENTION TO MOVE FOR A NEW TRIAL

8 BRIAN D. WALLER (admitted pro hac vice), PECKER & ABRAMSON, P.C.

9 1325 Avenue of the Americas, 10th Floor, New York, NY 10019

10 Phone: 212-382-0909 Email: bwaller@pecklaw.com

11 X [BY STANDARD POSTAL DELIVERY] I placed each in an envelope or package
12 designated by USPS with delivery fees paid or provided for, addressed to the person listed above
and delivered to the facility regularly maintained by USPS pursuant to Code of Civil Procedure
section 1013, subdivision (c).

13 X [BY ELECTRONIC TRANSMISSION] I transmitted a copy of what was sent by Federal
14 Express to email address bwaller@hooklaw.com listed on the Notice of Substitution of Counsel
Judicial Council form served on me pursuant to Cal.Rules of Court, Rule 2.251, subdivision (a).

15
16 I declare under penalty of perjury under the laws of the State of California that the
17 foregoing is true and correct.

18
19
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21
22 DATED: March 9, 2021

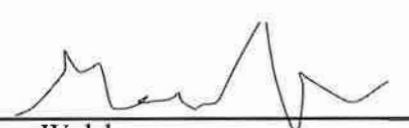

Maura Walsh

EXHIBIT D

EXHIBIT D

**SUPERIOR COURT OF CALIFORNIA
County of San Francisco**

STEPHEN RUSSELL, an individual

Plaintiff,

vs.

TARA WALSH, an individual; and
DOES 1-20,

Defendants.

Case Number: CGC-18-570137

**CERTIFICATE OF SERVICE BY
MAIL AND BY EMAIL**
(CCP 1013a (4))

I, Kimberly M. Septien, a Deputy Clerk of the Superior Court of the County of San Francisco, certify that I am not a party to the within action.

On March 4, 2022, I served the attached **JUDGEMENT ON JURY VERDICT** filed on March 3, 2022, by placing a copy thereof in a sealed envelope, addressed as follows:

BRIAN D. WALLER, ESQ.
Peckar & Abramson, P.C.
1325 Avenue of the Americas, 10th Floor
New York, NY 10019

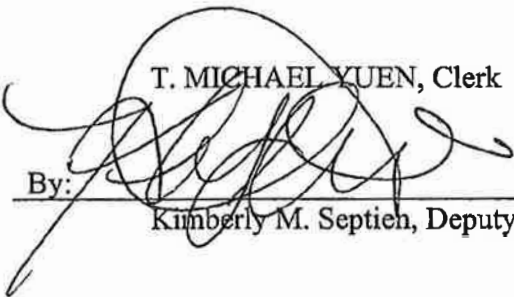
TARA WALSH
394 Whippoorwill Rd
Chappaqua, NY 10514

and, I then placed the sealed envelopes in the outgoing mail at 400 McAllister Street, San Francisco, CA. 94102 on the date indicated above for collection, attachment of required prepaid postage, and mailing on that date following standard court practices. I also emailed the document on March 3, 2022, to the following:

- a. bwaller@pecklaw.com
- b. tarawalsh0127@gmail.com

Dated: March 3, 2022

T. MICHAEL YUEN, Clerk

By: 

Kimberly M. Septien, Deputy Clerk

EXHIBIT E

EXHIBIT E

IN THE SUPERIOR COURT OF THE STATE OF CALIFORNIA

IN THE CITY AND COUNTY OF SAN FRANCISCO

BEFORE THE HONORABLE GARRETT L. WONG, JUDGE

DEPARTMENT 504

— — — 000 — — —

STEPHEN RUSSELL,

Plaintiff,

VS.

TARA WALSH, et al.,

Defendant

CASE NO. CGC-18-570137

REPORTER'S TRANSCRIPT OF PROCEEDINGS

Wednesday, February 16, 2022

Reported by Angie Diner, RMR, CRR, CSR 9581

1 A P P E A R A N C E S:

2

3 FOR Plaintiff Stephen Russell:

4 PECKAR & ABRAMSON, P.C.
5 BY: BRIAN WALLER, ATTORNEY AT LAW
6 1325 Avenue of Americas, 10th Floor
7 New York, New York 10019
8 212.382.0909
9 Bwaller@pecklaw.com

10 FOR Defendant In Pro Per:

11 TARA K. WALSH
12 394 Whippoorwill Road
13 Chappaqua, New York 10514
14 646.397.3494
15 Tarawalsh0127@gmail.com

16

17

18

19

20

21

22

23

24

25

EXHIBIT F

EXHIBIT F

1 TARA WALSH
SELF REPRESENTED PARTY
2 Tarawalsh0127@gmail.com
ACP 4590 , P.O. Box 1110
3 Albany, N.Y. 12201-1110 Telephone: 646.397.3492

4
5 Defendant in Pro Per
6

ELECTRONICALLY
FILED
Superior Court of California,
County of San Francisco

03/21/2022
Clerk of the Court
BY: RONNIE OTERO
Deputy Clerk

7
8 **SUPERIOR COURT OF THE STATE OF CALIFORNIA**
9 **COUNTY OF SAN FRANCISCO**

10 STEPHEN RUSSELL, an individual,

11 Plaintiff,

12 v.

13 TARA WALSH

14 Defendant
15
16
17
18

Case No. CGC-18-570137

**DEFENDANT DECLARATION IN
SUPPORT OF MOTION FOR
JUDGEMENT NOTWITHSTANDING
THE VERDICT**

Judge: Hon, Garret Wong
Department: 504
Trial Date: February 14, 2022
Time: 9:30 AM

Action Filed: September 26, 2018

19
20
21 **DECLARATION OF TARA WALSH**

22 I, TARA WALSH, am the named defendant in the above-referenced matter. I have personal
23 knowledge of each fact stated in this declaration.

- 24 1. Before trial, Plaintiff's counsel told this court they had evidence that I "drugged" Plaintiff that they
25 did not present at trial. This evidence was significant, included alleged texts to friends and family I
26 "drugged" Plaintiff. At a hearing before this court, Plaintiff's counsel stated "There were previous
27
28

- 1 2. I do not believe that a clear case was presented to the jury. During deliberations, the jury asked
2 “how should we define “touch” in regards to this case. Is it the ingestion of the Seroquel”. If they
3 did believe the “touch” was Plaintiff ingesting Seroquel, it is extremely relevant that he took it
4 willingly for years. Them not knowing this information significantly hindered my defense.(See
5 **EXHIBIT 2**).
- 6 3. I have had full-stay away Orders of Protection against Plaintiff for almost 4 years that extend until
7 2024. I recently was awarded permanent legal and physical custody of our daughter in New York
8 (for the second time). The New York Courts investigation on Plaintiff and I have been extremely
9 extensive, including forensic evaluations, substance abuse evaluations, and drug testing. The last
10 time Plaintiff was in New York Family Court for a custody hearing he failed a drug and alcohol
11 test (**EXHIBIT 3**). At this test, he tested positive for opioids, amphetamines and alcohol. Again, a
12 critical piece of evidence I was unable to submit to indicate his substance abuse of prescription
13 medication and alcohol.
- 14 4. The family courts in New York have a long history of dealing with Plaintiff. In this history, they
15 have stated his behavior is “disturbing” and concerns about his “mental health”. This history was
16 extremely relevant as Plaintiff has also been in contempt of court many times, which directly
17 speaks to the credibility in the testimony he gave to the jury. Plaintiff does not respect the court
18 process and has a history of lying- directly to Judge’s faces. Example of such is transcript as
19 **EXHIBIT 4**.
- 20 5. The first day of trial, Judge Wong granted Plaintiff’s Motion to in Limine gutting my entire
21 defense. The critical topics I was barred from addressing were Plaintiff’s prescription drug history,
22 his history of mental illness, my order of protection against him and his history of extensive abuse
23 of the judicial process. This includes a separate lawsuit suing my parents and I in San Francisco
24 and a duplicate lawsuit filed for “drugging” in New York with a cause of action being negligence,
25 which directly contradicts the cause of action in this complaint. This history is relevant to establish
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1 the history of domestic abuse at the hands of Plaintiff and the complexity in my fear of him. The
2 Motion in Limine granted by the court are **EXHIBIT 5**.

3 6. Plaintiff's accusations of my abuse have gotten increasingly more factitious as time has gone on.
4 In his original request for a restraining order in 2018, he did not speak of any "stabbing" of a
5 cellphone like he presented to the jury (See original order as **EXHIBIT 6**). This is because that
6 story was made up and Plaintiff has no problem lying under oath. Each court case Plaintiff loses,
7 the more elaborate his stories get in order to have a "win". The court should have never allowed
8 this to happen as this information was never given in any discovery- and is made up.

9 7. Another tall tale that Plaintiff gave to this jury was that he obtained my personal data due to me
10 conveniently downloading it on his computer. Plaintiff has also stated he got this data from a
11 "criminal investigation", such as in a presentation of evidence to the forensic evaluator in New
12 York (**EXHIBIT 7**). I had evidence at trial to impeach that Plaintiff got my data with my consent,
13 which the court would not allow me to share. In them not doing so, I looked like a liar, which I am
14 not.

15 8. Plaintiff was harassing and intimidating everyone close to me before trial. He did this in order to
16 intimidate anyone from testifying. Plaintiff posted the depositions of my friends and family- all of
17 whom live in New York and know nothing about the events in May of 2018- all over the internet. I
18 asked this court for a protective order which they refused (**EXHIBIT 8**). When I refused to give a
19 name of a witness on my witness list before trial to protect her from online harassment from
20 Plaintiff, Judge Wong knew this months before trial but did not order me to give the name.
21 Plaintiff's counsel also knew this and never asked for the name. My most critical witness, who
22 directly could speak to witnessing Plaintiff's paranoia, delusions and bizarre behavior when I was
23 across the country, was barred from testifying. She also could have testified that Plaintiff gave her
24 a medication I believe was Seroquel in California when I was in New York. I was left with the
25 ability to present no witness at the trial, which was not fair.

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1 9. Plaintiff's cruel and harassing behavior towards everyone who has helped me over the past 4 years
2 has no limits. He went so far as to harass my family attorney in New York to the point my lawyer
3 was in fear for the safety of his family. This history was critical for a jury to know about to
4 understand the level of abuse I have suffered from this man. (See declaration stating such as
5 **EXHIBIT 9**).

6
7 10. I was given one hour on the last day of trial to present my evidence and testimony. I do not think
8 this was fair. I was unable to establish the complex, unpredictable and terrorizing history of
9 Plaintiff's abuse towards me. This includes not being able to discuss his stalking, sexual abuse,
10 financial coercion, isolation and threats, forcible confinement, psychological abuse and threats of
11 violence. Without this history, I could not establish why I acted in self-defense.

12 11. Plaintiff is a textbook domestic abuser. I know this because I have spent years in therapy
13 and counseling with various domestic violence organizations. Due to this, I am close to many
14 other DV victims and have helped give support to other DV victims. I have done many DV
15 Risk Assessments, in which Plaintiff's continued obsessive and aggressive behavior in court
16 indicates he is still a great danger to our daughter and I. It is extremely humiliating and
17 traumatizing for me to have to re-run the same issues over and over again in courts. It also has
18 prevented me from working and healing. It is completely unnecessary.

19 12. From the first onset of Plaintiff's extremely disturbing mental episodes and refusal to get proper
20 medical treatment, I ended our relationship and returned to New York. Although we had a few
21 brief encounters, I very much was intent on moving on in my life and raise our daughter alone. I
22 only came back to San Francisco with our infant daughter due to Plaintiff's financial coercion in
23 early 2018. I have done whatever I can to stay as far away from Plaintiff as possible. He has done
24 the opposite and continues to do whatever he can to be back in control of my life.

25 13. Plaintiff is extremely wealthy. To my knowledge, he has hundreds of millions of dollars in
26 various assets, primarily from early technology investments. He knows I have no money.
27 Plaintiff sued me to harass me and overwhelm me with litigation in an attempt to blackmail me
28

1 into letting him back into my life. Since our daughter was born, financial coercion has been his
2 most effective and devastating form of abuse. Currently, after the latest trial, I lost my two
3 consulting clients and am currently applying for food stamps. I am struggling to provide for
4 our daughter. Simultaneously, Plaintiff is trying to cut the small amount of child support he
5 pays. The judgment of \$325,000 with 10% interest will bury me financially for the rest of my
6 life. It also will keep me chained to Plaintiff and in a completely unnecessary cycle of abuse.
7 From my research and experience with DV victims, I think the court has a long way to go in
8 protecting victims and something has to change. I understand this is a very unique situation.

9 14. The longer domestic violence goes on, the smaller and smaller a victims world becomes.
10 That is what has happened here. As I have been under attack in litigation, so has my entire
11 support system, including those in the court system. Plaintiff has gone so as suing a family
12 court judge in New York who first gave me permanent custody and a two year order of
13 protection.. I can count at least 13 different judges who have been involved in endless
14 complaints and appeals- all of which have included accusations of drugging. In constantly
15 reliving my trauma, I have a hard time leaving the house. For four years, I continue to drown
16 in Plaintiff's abuse. I am aware I am not a lawyer, but I also am not a superhero. I have done
17 my very best in this court proceeding but without the ability to afford legal counsel I have
18 failed. I also was unable to represent myself in trial effectively due to my trauma. I lost the
19 second Plaintiff filed the lawsuit, and that is why he prolonged trial for as long as possible.

20 15. During trial, I had a panic attack. I told the judge I could not properly represent myself due
21 to my trauma and own mental issues. I did myself to stand up to Plaintiff's abuse, including
22 him submitting forged texts, undermining my abuse, and lying in his testimony, but in doing
23 so I was constantly reprimanded by the court and undermined by Plaintiff's lawyer. After the
24 judge said he would sanction me, I gave up and stopped objecting. Plaintiff came to court for
25 ½ of a day and testified for a short period. He was calm and credible. On the other hand, I
26 appeared unstable, aggressive, defiant, and inconsistent. I was given 1 hour to present my case.

27 16. Currently, although I support our daughter knowing all of her family, I am too scared to
28 even have her do visits with Plaintiff's mother due to the financial backlash. Any thread of

1 connection to my life he gets, I expose myself to liability in litigation costs. I am worried about
2 our daughter's future in any involvement with her father for the same reasons.

3

4 I declare under penalty of perjury under the laws of the State of California and the State of
5 New York that the foregoing is true and correct.

6

7 Signed this 21st of March, 2022, in Chappaqua, New York.

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By: 
TARA WALSH

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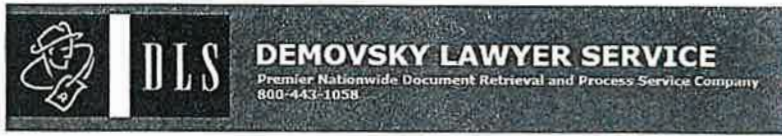
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EXHIBIT G

EXHIBIT G



SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF SAN FRANCISCO

-----X

STEPHEN RUSSELL,

Case No. CGC-20-588105

Plaintiff(s),

-against-

AFFIDAVIT OF SERVICE

STEPHEN WALSH, ET AL,

Defendant(s).

-----X

STATE OF NEW YORK)

S.S.

COUNTY OF NEW YORK)

BRENDAN COLLISHAW, being duly sworn, deposes and says that he is over the age of eighteen years, is employed by the attorney service, D.L.S., Inc., and is not a party to this action.

That on the 30TH day of JANUARY, 2023, at approximately the time of 9:45AM, on the 31ST day of JANUARY, 2023, at approximately the time of 12:00PM, and on the 2ND day of FEBRUARY, 2023, at approximately the time of 4:50PM, deponent attempted to serve a true copy of the SUMMONS, COMPLAINT, FIRST AMENDED COMPLAINT, & CIVIL CASE COVER SHEET upon TARA WALSH at 138 CHAPPAQUA ROAD, BRIARCLIFF MANOR, NY 10510 but THERE WAS NO ANSWER AT THAT ADDRESS.

At that time, therefore, deponent served a true copy of the foregoing papers upon TARA WALSH by firmly affixing same conspicuously on the front door at that address, the actual place of TARA WALSH.

#286852

D.L.S., Inc.
400 Rella Blvd.
Ste. 165
Suffern, NY 10901
845-639-7559
www.dlsnational.com



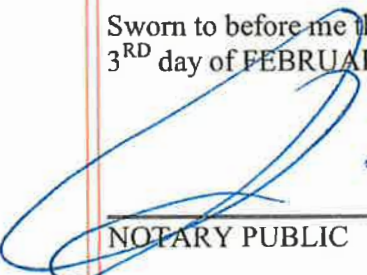
That on the 3RD day of FEBRUARY, 2023, deponent served another copy of the foregoing upon TARA WALSH by first class mail, by enclosing a true copy thereof in a securely sealed and postpaid wrapper with the words "PERSONAL AND CONFIDENTIAL" written on the same envelope, and not indicating on the outside that it is from an attorney or concerns an action against the person to be served, and depositing the same into an official depository maintained by the Government of the United States, Village of Florida, State of New York, addressed as follows:

TARA WALSH
138 CHAPPAQUA ROAD
BRIARCLIFF MANOR, NY 10510



BRENDAN COLLISHAW

Sworn to before me this
3RD day of FEBRUARY, 2023



NOTARY PUBLIC

JONATHAN RIPPS NOTARY PUBLIC, STATE OF NEW YORK Registration No. 01RI6109718 Qualified in New York County My Commission Expires May 17, 2024
--

#286852

D.L.S., Inc.
400 Rella Blvd.
Ste. 165
Suffern, NY 10901
845-639-7559
www.dlsnational.com

EXHIBIT H

F

EXHIBIT H

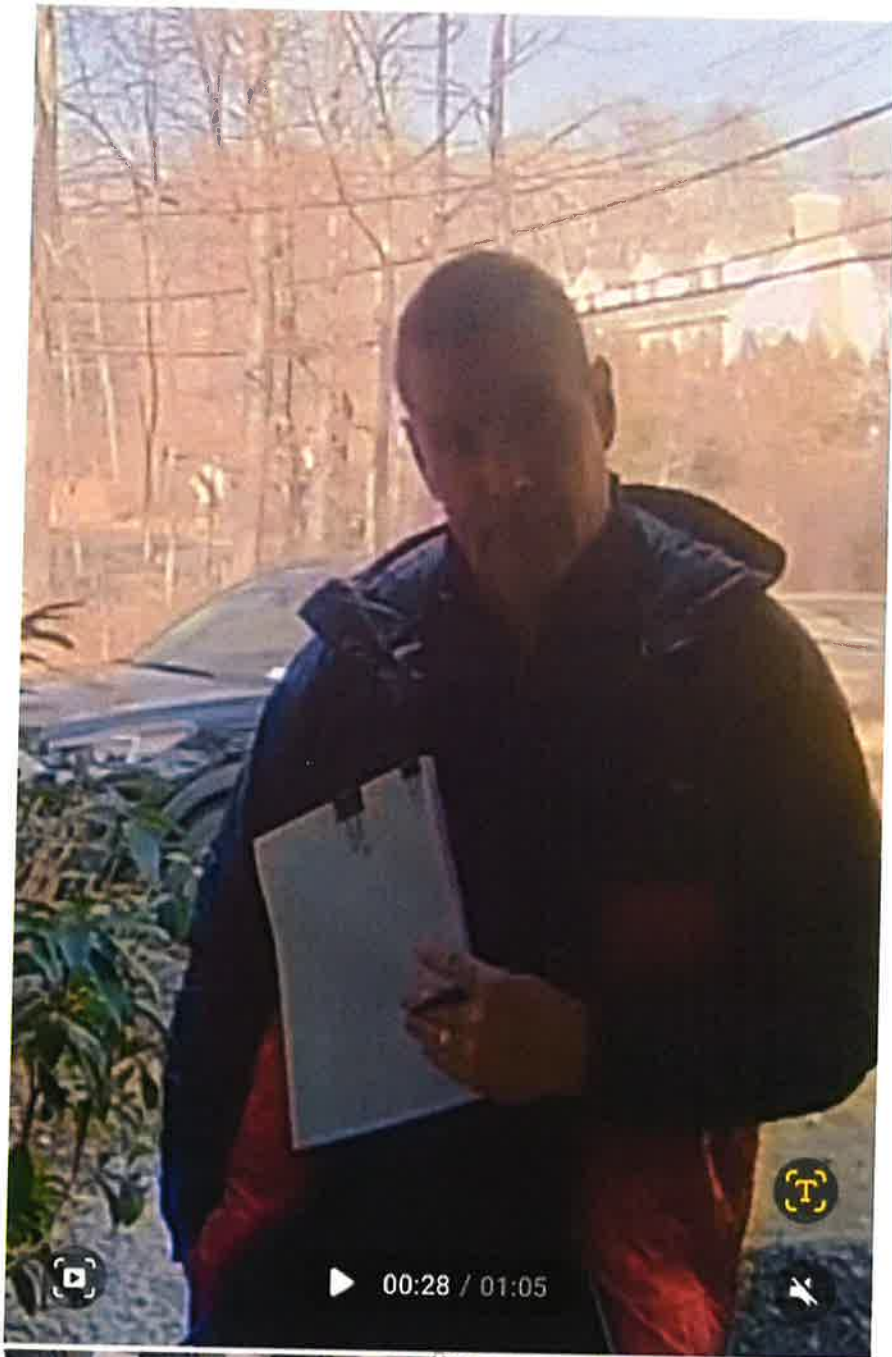


EXHIBIT I



Maura Walsh being served at her Tennis Club in Chappaqua, New York

EXHIBIT I

EXHIBIT J



April 22, 2021 (Russell v. Walsh CGC-18-570137) Transcript

Maura Walsh states that the service received is “harassment” and, that she “can’t possibly keep track of all of these documents. (1:22:03).

EXHIBIT J

EXHIBIT K

EXHIBIT K

NOT TO BE PUBLISHED IN OFFICIAL REPORTS

California Rules of Court, rule 8.1115(a), prohibits courts and parties from citing or relying on opinions not certified for publication or ordered published, except as specified by rule 8.1115(b). This opinion has not been certified for publication or ordered published for purposes of rule 8.1115.

IN THE COURT OF APPEAL OF THE STATE OF CALIFORNIA

FIRST APPELLATE DISTRICT

DIVISION FOUR

STEPHEN RUSSELL,

Plaintiff and Respondent,

v.

TARA WALSH,

Defendant and Appellant.

A165356

(City & County of San Francisco
Super. Ct. No. CGC-18-570137)

Stephen Russell sued Tara Walsh for battery, intentional infliction of emotional distress, and domestic violence (Civ. Code, § 1708.6, subd. (a)), and a jury found her liable for all three torts. Walsh, who represented herself at trial and does so again on appeal, argues that the evidence is insufficient to support the jury's verdict. She also contends that the trial court erred in declining to continue the trial when she told the court about her mental health issues. Finding none of these arguments persuasive, we affirm the judgment.

The parties are familiar with the facts and our opinion does not meet the criteria for publication. (Cal. Rules of Court, rule 8.1105(c).) We confine our discussion to the information that is relevant to our conclusions and to our statement of the reasons that have led us to them. (See Cal. Const., art. VI, § 14; *Lewis v. Superior Court* (1999) 19 Cal.4th 1232, 1262.)

DISCUSSION

1. The Trial Court Acted Within Its Discretion in Electing Not to Continue the Trial

Walsh argues that the trial court “erred in refusing to continue the trial when . . . Walsh expressed that she was having mental health issues.” We disagree.

“The court may grant a continuance only on an affirmative showing of good cause requiring the continuance.” (Cal. Rules of Court, rule 3.1332(c).) “A trial court has broad discretion in ruling on a motion for a continuance. [Citation]. It is the duty of the trial court to vigorously insist upon cases being heard and decided in the most timely manner possible, unless there are compelling reasons to the contrary.” (*Midwest Television, Inc. v. Scott, Lancaster, Mills & Atha, Inc.* (1988) 205 Cal.App.3d 442, 456.) “Unnecessary continuances are wasteful, nonproductive, time-consuming and a fertile ground for criticism by the public of the courts.” (*County of San Bernardino v. Doria Mining & Engineering Corp.* (1977) 72 Cal.App.3d 776, 781.) “A trial court has great discretion in the disposition of an application for a continuance. Absent a clear abuse of discretion, the court’s determination will not be disturbed.” (*Estate of Smith* (1973) 9 Cal.3d 74, 81.)

According to Walsh, there was good cause to continue her trial because she told the court that she was “not mentally fit to go through the trial” and offered to “obtain[] a letter from her psychiatrist” to the same effect. However, when Walsh first made the request for a continuance, the jury had been sworn and she had just delivered an opening statement in propria persona. Having observed that opening statement, the trial court could reasonably conclude that Walsh was able to proceed despite any difficulties.

The trial court buttressed that conclusion after Walsh faced direct examination: “[T]he Court is not precluding you from [presenting] the [psychiatrist’s] note, but I will also tell you that if you wish to continue this case in some form or fashion, that I will require under the law good cause. So far I’ve not seen a good cause basis.” As the trial court observed, Walsh had “been able to withstand the examination by” opposing counsel, and “seem[ed] to have the ability to understand the nature of the proceedings, what’s going on, and to proceed with the case.” Moreover, even though the court made clear that Walsh could present a note from a psychiatrist to support her request and emphasized that she had not yet established good cause, Walsh never did so.

Under these circumstances, we cannot find an abuse of discretion in the trial court’s conclusion that Walsh’s oral statements concerning her mental health problems did not establish good cause to continue the trial and thereby override the courts’ vital interest in avoiding costly delays.

2. Walsh’s Challenges to the Sufficiency of the Evidence Are Waived

Walsh argues that no substantial evidence supports a finding that she committed battery, intentional infliction of emotional distress, or domestic violence against Russell. Because she has not made the requisite showing in any of those respects, we disagree.

In reviewing the sufficiency of the evidence, we presume that the “ ‘record contains evidence to sustain every finding of fact.’ ” (*Foreman & Clark Corp. v. Fallon* (1971) 3 Cal.3d 875, 881 (*Foreman*)). It is the appellant’s burden to demonstrate that it does not. (*Ibid.*) “In furtherance of this burden, the appellant must fairly summarize all the facts in the light most favorable to the judgment.” (*Burch v. CertainTeed Corp.* (2019) 34 Cal.App.5th 341, 349.) “Accordingly, if . . . ‘some particular issue of fact is

not sustained, they are required to set forth in their brief *all* the material evidence on the point and *not merely their own evidence*. Unless this is done the error assigned is deemed to be waived.’ ” (*Foreman*, at p. 881.)

Here, Walsh’s opening brief summarizes only her own testimony, not Russell’s. By neglecting Russell’s testimony—which described symptoms he experienced, how those symptoms would abate in Walsh’s absence, a blood test that revealed high levels of lithium in his body, and the statements of a nanny who had witnessed Walsh drugging his wine—Walsh failed “to set forth . . . *all* the material evidence” pertaining to the sufficiency of the evidence for battery, intentional infliction of emotional distress, and domestic violence. (*Foreman*, *supra*, 3 Cal.3d at p. 881.) Accordingly, her claims in those respects are waived. (*Ibid.*)

3. Even if Those Claims Were Not Waived, Substantial Evidence Supports the Jury’s Verdict to All Three Torts

Walsh’s challenges to the sufficiency of the evidence fail on the merits, as well. We explain below.

a. Standard of Review

In evaluating the record for substantial evidence, we determine whether the evidence, “contradicted or uncontradicted,” will support the judgment. (*Bowers v. Bernards* (1984) 150 Cal.App.3d 870, 873–874.) “ ‘Substantial evidence’ is evidence of ponderable legal significance, evidence that is reasonable, credible and of solid value.” (*Roddenberry v. Roddenberry* (1996) 44 Cal.App.4th 634, 651.) “ ‘ “The testimony of a [single] witness . . . may be sufficient” [to support a judgment].’ ” (*In re Marriage of Slivka* (1986) 183 Cal.App.3d 159, 163.) “It is not our role as a reviewing court to reweigh the evidence or to assess witness credibility.” (*Thompson v. Asimos* (2016) 6 Cal.App.5th 970, 981 (*Thompson*).)

b. Battery

First, Walsh challenges the sufficiency of the evidence for battery. “ ‘A battery is any intentional, unlawful and harmful contact by one person with the person of another. . . . A harmful contact, intentionally done is the essence of a battery. . . . A contact is “unlawful” if it is unconsented to. . . .’ [Citation.] The elements of a civil battery are: ‘ “1. Defendant intentionally did an act which resulted in a harmful or offensive contact with the plaintiff’s person; [¶] 2. Plaintiff did not consent to the contact; [and][¶] 3. The harmful or offensive contact caused injury, damage, loss or harm to the plaintiff.” ’ ” (*Fluharty v. Fluharty* (1997) 59 Cal.App.4th 484, 497 (*Fluharty*).)

Here, Walsh and Russell resided in New York City and San Francisco, respectively. They met in New York in 2015 and began a dating relationship. Russell testified that in 2016, after a visit from Walsh, he became “severely ill . . . to the point [he] was unable to get out of bed.” Soon after giving birth to their daughter in early 2017, Walsh came to San Francisco to stay with Russell. From that time through the middle of the next year, there were “at least a dozen times” when Russell suspected he had been drugged. During some of those times, he went “to the emergency room to get toxicology reports” According to Russell, “it felt like being knocked out,” like “you’re going to lose consciousness.” Such episodes would occur when Walsh was staying in the same city as Russell, but abate once the two had parted.

In her own testimony, Walsh admitted that on at least two occasions during the same time period, she put the prescription drug Seroquel into Russell’s wine without asking his permission or telling him she was doing so. She then “put it on the coffee table” near him, intending that Russell ingest the drug. When a nanny later told Russell about Walsh drugging the wine, the revelation “[e]xplained . . . 90 percent of what [he] had been experiencing

that month”: “a very confusing set of symptoms” related to the drug’s onset, “the panic [he] would experience upon noticing [he] was drugged, and the subsequent “withdrawal and neuropathy.”

A jury hearing that testimony could reasonably find by a preponderance of the evidence that Walsh had battered Russell. Walsh admitted to drugging Russell’s wine and placing it near him, intending for him to drink it. And Russell explained the abnormal and unpleasant sensations he experienced around that time. On that basis, it is reasonable to infer that Walsh “ ‘ “intentionally did an act which resulted in a harmful or offensive contact with [Russell’s] person.” ’ ” (*Fluharty, supra*, 59 Cal.App.4th at p. 497.) That Russell “ ‘ “did not consent to the contact” ’ ” follows from the testimony showing that he was ignorant of Walsh’s conduct and panicked upon feeling the drug’s effects. (*Ibid.*) And Russell’s testimony regarding his symptoms supports a finding that Walsh’s actions “ ‘ “caused . . . harm” ’ ” (*Ibid.*)

As for Walsh’s contention that she drugged Russell in self-defense, it cannot survive the standard of review operative here. That affirmative defense requires the defendant to have “reasonably believed, in view of all the circumstances of the case, that the plaintiff was going to harm him or her. . . .” (*J.J. v. M.F.* (2014) 223 Cal.App.4th 968, 976.) Here, Russell testified that he never physically harmed Walsh or threatened her with physical harm. If that testimony is credited, then Walsh could not have *reasonably* believed Russell was going to harm her. As we have already observed, “[i]t is not our role as a reviewing court to reweigh the evidence or to assess witness credibility.” (*Thompson, supra*, 6 Cal.App.5th at p. 981.) Accordingly, we defer to the jury in Walsh’s case, which apparently resolved this question of credibility against her.

Finally, in arguing that Russell consented to being drugged, Walsh relies on two cases: *Piedra v. Dugan* (2004) 123 Cal.App.4th 1483 and *Saxena v. Goffney* (2008) 159 Cal.App.4th 316. However, neither case is relevant to her argument. In both *Piedra* and *Saxena*, the defendants were medical doctors and the legal analysis in those cases related to signed consent forms by which the plaintiffs or their guardians *expressly* consented to medical treatment. (*Piedra* at p. 1496; *Saxena* at p. 321.) In contrast, Walsh argues only that Russell rendered *implied* consent.

Unaided by *Piedra* and *Saxena*, Walsh's argument challenging the sufficiency of the evidence for battery comprises a series of assertions unsupported by any legal authority or citations to the record. For that reason, it does nothing to undermine our analysis supporting the verdict. (See *Foreman, supra*, at p. 881 [it is appellant's burden to demonstrate the insufficiency of the evidence].)

c. Intentional Infliction of Emotional Distress

Second, Walsh challenges the sufficiency of the evidence for intentional infliction of emotional distress. "The elements of the tort of intentional infliction of emotional distress are: '“(1) extreme and outrageous conduct by the defendant with the intention of causing, or reckless disregard of the probability of causing, emotional distress; (2) the plaintiff's suffering severe or extreme emotional distress; and (3) actual and proximate causation of the emotional distress by the defendant's outrageous conduct. . . .” Conduct to be outrageous must be so extreme as to exceed all bounds of that usually tolerated in a civilized community.’ [Citation.] The defendant must have engaged in ‘conduct intended to inflict injury or engaged in with the realization that injury will result.’” (*Christensen v. Superior Court* (1991) 54 Cal.3d 868, 903; see also *Hughes v. Pair* (2009) 46 Cal.4th 1035, 1050.)

Here, Walsh's extreme and outrageous conduct consisted of her drugging Russell's wine without his knowledge or consent. Her reckless disregard for the probability of causing emotional distress can be inferred from the fact that she accompanied Russell on one of his trips to the emergency room for a toxicology report when he suspected he had been drugged. Walsh therefore had reason to know that Russell believed he was being drugged and that this belief was causing him distress, and she acted with that knowledge when, later, she admittedly drugged him herself. And Russell's testimony regarding his feelings of panic upon feeling the effects of being drugged support the jury's finding that Walsh's conduct caused Russell's emotional distress.

d. Domestic Violence

Third, Walsh challenges the sufficiency of the evidence for domestic violence. Civil Code section 1708.6, subdivision (a) provides: "A person is liable for the tort of domestic violence if the plaintiff proves both of the following elements: [¶] (1) The infliction of injury upon the plaintiff resulting from abuse, as defined in subdivision (a) of Section 13700 of the Penal Code. [¶] (2) The abuse was committed by the defendant, a person having a relationship with the plaintiff as defined in subdivision (b) of Section 13700 of the Penal Code." " 'Abuse' means intentionally or recklessly causing or attempting to cause bodily injury, or placing another person in reasonable apprehension of imminent serious bodily injury to himself or herself, or another." (Pen. Code, § 13700, subd. (a).)

Here, Walsh does not contest the jury's finding that she and Russell had the requisite relationship for the tort of domestic violence; only the "injury" finding is contested. But Walsh committed abuse because she placed Russell "in reasonable apprehension of imminent serious bodily injury to

himself” (Pen. Code, § 13700, subd. (a)) by inducing the panic Russell experienced upon noticing he had been drugged. That abusive conduct resulted in injuries that included Russell’s symptoms of “withdrawal and neuropathy.” Walsh offers another explanation for those symptoms—Russell’s pre-existing “mental health issues”—but “[u]nder the substantial evidence standard of review, ‘where two or more different inferences can reasonably be drawn from the evidence, this court is without power to substitute its own inferences for those of the [trier of fact] and decide the case accordingly.’” (*Escobar v. Flores* (2010) 183 Cal.App.4th 737, 752.)

DISPOSITION

The judgment is affirmed. Russell is entitled to recover his costs on appeal.

GOLDMAN, J.

WE CONCUR:

STREETER, Acting P. J.
HIRAMOTO, J. *

* Judge of the Superior Court of California, County of Contra Costa, assigned by the Chief Justice pursuant to article VI, section 6 of the California Constitution.

AFFIDAVIT OF SERVICE

I, the undersigned, declare the following. I am over the age of eighteen (18) and am not a party to this action.

On the date set forth below, I served the document(s) entitled:

SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF SAN FRANCISCO

CASE NO. CGC-20-588105

DECLARATION OF STEPHEN RUSSELL IN RESPONSE TO ORDER TO SHOW CAUSE

STEPHEN RUSSELL (pro se)
5334 Valley Vista Dr.
Sparks, NV 89431

X [BY ELECTRONIC TRANSMISSION] I submitted a copy to email addresses:
fsmoore@packbell.net, maurawalsh50@gmail.com, sw052382@gmail.com,
tarawalsh0127@gmail.com.

X [BY FEDERAL EXPRESS MAIL] I sent a copy through federal express mail to the
following addresses: 394 Whippoorwill Road, Chappaqua, New York 10514, and via
Confidential Address Service Albany, NY.

I declare under penalty of perjury under the laws of the State of California that the
foregoing is true and correct.

DATED: October 26, 2023



Bonnie Hunt

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO**
400 MCALLISTER STREET, SAN FRANCISCO, CA 94102-4514

STEPHEN RUSSELL

PLAINTIFF (S)

VS.

STEPHEN WALSH et al

DEFENDANT (S)

**Case Management Department 610
Case Management Order**

NO.: CGC-20-588105

Continued Order to Show Cause

TO: PLAINTIFF'S COUNSEL AND/OR SELF-REPRESENTED PLAINTIFF(S)

The Oct-31-2023 ORDER TO SHOW CAUSE is canceled.

YOU ARE HEREBY ORDERED TO APPEAR in Department 610 on Jan-30-2024 at 10:30 am, pursuant to Local Rule 3.0 C to show cause why this action should not be dismissed or why sanctions should not be imposed for failure to:

file proof of service on defendant(s) and obtain answer(s), or enter default(s) as to the First Amended Complaint; pay outstanding sanctions.

*****NOTICE: IMPENDING MANDATORY DISMISSAL PURSUANT TO CCP SECTION 583.210 and SECTION 583.250.*****

*****NOTE: Please file a notice of change of address. Otherwise, plaintiff's mailing address remains in New York per 6/29/22 Order Granting Motion to Withdraw.*****

CRC 3.110(i) requires that responsive papers to an order to show cause must be filed and served at least 5 calendar days before the hearing.

However, it would facilitate the issuance of a case management order prior to the Order to Show Cause hearing if the Response to Order to Show Cause is filed and served twenty (20) days before the Order to Show Cause hearing.

PLAINTIFF(S) must serve a copy of this notice on all parties not listed on the attached proof of service within five (5) days of the date of this order.

You may check the case information at <https://sf.courts.ca.gov/online-services/case-information> before the hearing to determine whether your compliance has taken the order to show cause off calendar.

DATED: OCT-27-2023

ANNE-CHRISTINE MASSULLO

JUDGE OF THE SUPERIOR COURT

CERTIFICATE OF SERVICE BY MAIL

I, the undersigned, certify that I am an employee of the Superior Court of California, County of San Francisco and not a party to the above-entitled cause and that on OCT-27-2023 I served the attached Continued Order to Show Cause by placing a copy thereof in an envelope addressed to all parties to this action as listed below. I then placed the envelope in the outgoing mail at 400 McAllister Street, San Francisco, CA 94102, on the date indicated above for collection, sealing of the envelope, attachment of required prepaid postage, and mailing on that date, following standard court practice.

Dated : OCT-27-2023

By: SHIRLEY LE

STEPHEN RUSSELL
C/O BRIAN WALLER, PECKER & ABR
1325 AVE OF THE AMERICAS 10 FL
NEW YORK, NY 10019

STEPHEN WALSH
394 WHIPPOORWILL RD
CHAPPAQUA, NY 10514

ATTORNEY OR PARTY WITHOUT ATTORNEY (Name, State Bar number, and address): STEPHEN RUSSELL 5334 VALLEY VISTA DR SPARKS, NV 89431 TELEPHONE NO.: (415) 730-1011 FAX NO. (Optional): E-MAIL ADDRESS (Optional): sg.russ@aol.com ATTORNEY FOR (Name): n/a	FOR COURT USE ONLY ELECTRONICALLY FILED <i>Superior Court of California, County of San Francisco</i> 10/30/2023 Clerk of the Court BY: JEFFREY FLORES Deputy Clerk
SUPERIOR COURT OF CALIFORNIA, COUNTY OF San Francisco STREET ADDRESS: 400 MCALLISTER STREET MAILING ADDRESS: CITY AND ZIP CODE: SAN FRANCISCO 94102 BRANCH NAME: CIVIC CENTER COURTHOUSE	
PLAINTIFF/PETITIONER:STEPHEN RUSSELL DEFENDANT/RESPONDENT:STEPHEN WALSH ET AL	
NOTICE OF CHANGE OF ADDRESS OR OTHER CONTACT INFORMATION	DEPT.: 610

1. Please take notice that, as of (date):

- ☒ the following self-represented party or
- ☐ the attorney for:
- a. ☐ plaintiff (name):
 - b. ☐ defendant (name):
 - c. ☐ petitioner (name):
 - d. ☐ respondent (name):
 - e. ☐ other (describe):

has **changed his or her address** for service of notices and documents or other contact information in the above-captioned action.

☐ A list of additional parties represented is provided in Attachment 1.

2. The **new address** or other contact information for (name):
is as follows:

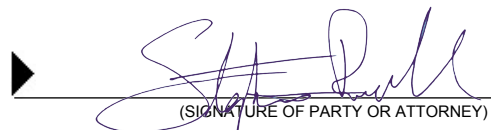
- a. Street: 5334 VALLEY VISTA DR
- b. City: SPARKS
- c. Mailing address (if different from above):
- d. State and zip code: NV 89431
- e. Telephone number: (415)730-1011
- f. Fax number (if available):
- g. E-mail address (if available): sg.russ@aol.com

3. **All notices and documents** regarding the action should be sent to the above address.

Date: 10/26/2023

Stephen G Russell

(TYPE OR PRINT NAME)


 (SIGNATURE OF PARTY OR ATTORNEY)

